

--SUMMARY--

Decision No. 1152/23

29-Aug-2023

A.Baker

- In the course of employment (employer's premises)
- In the course of employment (personal activity)
- In the course of employment (reasonably incidental activity test)
- Right to sue (gross negligence)

The respondent was an employee of a temporary employment agency. He was assigned to work at the applicant's facility. He claimed a slip and fall incident occurred in a walkway leading from the parking lot to the employee entrance at the applicant's location. The issue in this application was whether the respondent was "in the course of his employment" at the time of the incident on January 18, 2018, and therefore barred from pursuing the civil suit pursuant to section 28(1) of the WSIA.

The application was allowed. The respondent's right to sue was taken away.

The respondent was a temporary worker. OPM Document No. 15-02-02 addresses situations where workers do not have a fixed workplace. If a worker is normally expected to work away from a fixed workplace, a personal injury by accident generally will have occurred in the course of employment if it occurred in a place where the worker might reasonably have been expected to be while engaged in work-related activities. The incident occurred on the applicant's facilities and grounds over which the employer had care and control. It was a place in which the worker would have been expected to be in the course of performing his job. It related to the nature of the activity being performed at that moment - he was arriving at work. This was an activity that was incidental to employment function.

In addition, the worker arrived early for his shift by 20 minutes. Where a worker intentionally arrives early for work, for reasons unrelated to their job, and is not yet performing tasks incidental to their employment, the worker is unlikely to be found to be in the course of employment. However, there are Tribunal cases that have concluded that time periods longer than 20 minutes before a usual start time are a reasonable period to arrive for work. The Vice-Chair found that it was reasonable for the Respondent to arrive 20 minutes before the start of his shift, allowing 15 minutes in order to prepare to work, including organizing his PPE gear. It was noted that a moment to relax briefly in the cafeteria on the applicant's premises was not a significant departure from his employment, nor a personal activity of the nature that would have taken him out of the course of employment. Thus, the respondent was in the course of employment when the claimed incident occurred on January 18, 2018.

11 Pages

References: Act Citation

- WSIA

Other Case Reference

- [w4323s]
- BOARD DIRECTIVES AND GUIDELINES: Operational Policy Manual, Documents No. 15-02-02; 15-03-03; 15-03-04; 15-03-08
- TRIBUNAL DECISIONS CONSIDERED: Decision No. 443/87, 1987 CanLII 1628 (ON WSIAT) refd to; Decision No. 2081/16, 2016 ONWSIAT 2996 refd to; Decision No. 62/18, 2018 ONWSIAT 242 refd to; Decision No. 62/18R, 2019 ONWSIAT 1115 refd to; Decision No. 62/18R2, 2019 ONWSIAT 2285 refd to; Decision No. 214/21, 2021 ONWSIAT 1409 refd to; Decision No. 2506/18, 2018 ONWSIAT 3255 refd to; Decision No. 2506/18R, 2019 ONWSIAT 954 refd to; Decision No. 1380/01, 2002 ONWSIAT 1871 refd to; Decision No. 1522/13, 2013 ONWSIAT 2561 refd to; Decision No. 1375/20, 2021 ONWSIAT 270 refd to; Decision No. 736/01, 2001 ONWSIAT 847 refd to

Style of Cause:
Neutral Citation: 2023 ONWSIAT 1324



WORKPLACE SAFETY AND INSURANCE APPEALS TRIBUNAL

DECISION NO. 1152/23

BEFORE: A.G. Baker: Vice-Chair

HEARING: August 22, 2023, at Toronto
Oral Videoconference Hearing

DATE OF DECISION: August 29, 2023

NEUTRAL CITATION: 2023 ONWSIAT 1324

APPLICATION FOR ORDER UNDER SECTION 31 OF THE WORKPLACE SAFETY AND INSURANCE ACT, 1997

APPEARANCES:

For the Applicant R. LeClair, Lawyer

For the Respondent: K. Creighton, Lawyer

For the Interested Party: N. Buhary, Lawyer

Interpreter: n/a

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REASONS

(i) Introduction and issue

[1] This is an application under section 31 of the *Workplace Safety and Insurance Act, 1997* (the “WSIA”) by “BC” (Defendant/Applicant) and opposed by “CG” (Plaintiff/Respondent) to the action filed in the Ontario Superior Court of Justice in London, Ontario and bearing Court file No. CV-100/2020.

[2] The application is related to an accident and injury to the Respondent on January 18, 2018. The Respondent at the time was an employee of a temporary employment agency “PS”. He was assigned to work at the Applicant’s facility. He claimed a slip and fall incident occurred in a walkway leading from the parking lot to the employee entrance at the Applicant’s location. According to the application, an interested party, “CPPM”, had a contract with the Applicant for winter maintenance of the premises that is at issue in the application. The Respondent also initially instituted a separate but related action bearing Superior Court File No. CV-20-00000958-0000, against CPPM. According to the materials filed by the parties, it was consolidated in May 2022 under file number CV-100/2020.

[3] The Applicant seeks a declaration that the Respondent’s right to sue is taken away by virtue of sections 28 to 31 of the WSIA. It was submitted in that regard that the Respondent was in the course of his employment when the incident occurred, and therefore should have properly pursued a claim through the WSIB for a workplace accident.

[4] The status of the parties in this case was not disputed and was confirmed in a Status Check with the Workplace Safety and Insurance Board (the “Board”) as of October 3, 2022. The Applicant, the Interested Party, and the Respondent’s employer were all stated to be active Schedule 1 employers. It was also confirmed that neither the Respondent nor PS had filed a claim in regard to the Respondent’s accident, and have taken the position that he was not in the course of his employment at the time of the incident.

(ii) Law and Policy

[5] The sole issue in this application is whether the Respondent was “in the course of his employment” at the time of the incident on January 18, 2018, and therefore barred from pursuing the civil suit pursuant to section 28(1) of the WSIA.

[6] Sections 26 through 29 of the WSIA provide the following:

26(1) No action lies to obtain benefits under the insurance plan, but all claims for benefits shall be heard and determined by the Board.

(2) Entitlement to benefits under the insurance plan is in lieu of all rights of action (statutory or otherwise) that a worker, a worker’s survivor or a worker’s spouse, child or dependant has or may have against the worker’s employer or an executive officer of the employer for or by reason of an accident happening to the worker or an occupational disease contracted by the worker while in the employment of the employer.

27(1) Sections 28 to 31 apply with respect to a worker who sustains an injury or a disease that entitles him or her to benefits under the insurance plan and to the survivors of a deceased worker who are entitled to benefits under the plan.

(2) If a worker's right of action is taken away under section 28 or 29, the worker's spouse, child, dependant or survivors are, also, not entitled to commence an action under section 61 of the *Family Law Act*.

28(1) A worker employed by a Schedule 1 employer, the worker's survivors and a Schedule 1 employer are not entitled to commence an action against the following persons in respect of the worker's injury or disease:

1. Any Schedule 1 employer.
2. A director, executive officer or worker employed by any Schedule 1 employer.

(2) A worker employed by a Schedule 2 employer and the worker's survivors are not entitled to commence an action against the following persons in respect of the worker's injury or disease:

1. The worker's Schedule 2 employer.
2. A director, executive officer or worker employed by the worker's Schedule 2 employer.

(3) If the workers of one or more employers were involved in the circumstances in which the worker sustained the injury, subsection (1) applies only if the workers were acting in the course of their employment.

(4) Subsections (1) and (2) do not apply if any employer other than the worker's employer supplied a motor vehicle, machinery or equipment on a purchase or rental basis without also supplying workers to operate the motor vehicle, machinery or equipment.

29(1) This section applies in the following circumstances:

1. In an action by or on behalf of a worker employed by a Schedule 1 employer or a survivor of such a worker, any Schedule 1 employer or a director, executive officer or another worker employed by a Schedule 1 employer is determined to be at fault or negligent in respect of the accident or the disease that gives rise to the worker's entitlement to benefits under the insurance plan.
2. In an action by or on behalf of a worker employed by a Schedule 2 employer or a survivor of such a worker, the worker's Schedule 2 employer or a director, executive officer or another worker employed by the employer is determined to be at fault or negligent in respect of the accident or the disease that gives rise to the worker's entitlement to benefits under the insurance plan.

(2) The employer, director, executive officer or other worker is not liable to pay damages to the worker or his or her survivors or to contribute to or indemnify another person who is liable to pay such damages.

(3) The court shall determine what portion of the loss or damage was caused by the fault or negligence of the employer, director, executive officer or other worker and shall do so whether or not he, she or it is a party to the action.

(4) No damages, contribution or indemnity for the amount determined under subsection (3) to be caused by a person described in that subsection is recoverable in an action.

[7]

The Board also has several policies that deal with the issue of whether or not a worker is in the course of employment. While section 126 of the WSIA requires this Tribunal to apply the Board's policy when deciding an appeal from a decision of the Board, the Tribunal is not bound by the policy when deciding an application under section 31 of the WSIA, because the application is not an "appeal." Nevertheless the Board's policy is often instructive in resolving issues which arise in section 31 applications. This is particularly so when, as in the present case,

the section 31 application turns on the question of whether or not a worker was in the course of employment at the time of an accident.

- [8] The first Board policy that is relevant is entitled “Accident in the Course of Employment” and is set out in Board *Operational Policy Manual* (OPM) Document No. 15-02-02. It reads as follows:

Policy

A personal injury by accident occurs in the course of employment if the surrounding circumstances relating to place, time, and activity indicate that the accident was work-related.

Guidelines

In determining whether a personal injury by accident occurred in the course of employment, the decision-maker applies the criteria of place, time, and activity in the following way:

Place

If a worker has a fixed workplace, a personal injury by accident occurring on the premises of the workplace generally will have occurred in the course of employment. A personal injury by accident occurring off those premises generally will not have occurred in the course of employment.

If a worker with a fixed workplace was injured while absent from the workplace on behalf of the employer or if a worker is normally expected to work away from a fixed workplace, a personal injury by accident generally will have occurred in the course of employment if it occurred in a place where the worker might reasonably have been expected to be while engaged in work-related activities.

Time

If a worker has fixed working hours, a personal injury by accident generally will have occurred in the course of employment if it occurred during those hours or during a reasonable period before starting or after finishing work.

If a worker does not have fixed working hours or if the accident occurred outside the worker's fixed working hours, the criteria of place and activity are applied to determine whether the personal injury by accident occurred in the course of employment.

Activity

If a personal injury by accident occurred while the worker was engaged in the performance of a work-related duty or in an activity reasonably incidental to (related to) the employment, the personal injury by accident generally will have occurred in the course of employment.

If a worker was engaged in an activity to satisfy a personal need, the worker may have been engaged in an activity that was incidental to the employment. Similarly, engaging in a brief interlude of personal activity does not always mean that the worker was not in the course of employment. In determining whether a personal activity occurred in the course of employment, the decision-maker should consider factors such as:

- the duration of the activity
- the nature of the activity, and
- the extent to which it deviated from the worker's regular employment activities.

In determining whether an activity was incidental to the employment, the decision-maker should take into consideration

- the nature of the work
- the nature of the work environment, and
- the customs and practices of the particular workplace.

[9] I also noted Board OPM Document No. 15-03-03 entitled “On/Off Employers’ Premises”, which provides in part:

A worker is considered to be in the course of employment on entering the employer's premises, as defined, at the proper time, using the accepted means for entering and leaving to perform activities for the purpose of the employer's business. The "In the course of employment" status ends on leaving the employer's premises, unless the worker leaves the premises for the purpose of the employment.

The employer's premises are defined as the building, plant, or location in which the worker is entitled to be, including entrances, exits, stairs, elevators, lobbies, parking lots, passageways, and roads controlled by the employer for the use of the workers when entering or leaving the work site.

An accident shall be considered to arise out of the employment when it happens on the employer's premises as defined, unless at the time of the happening of the accident

- the accident is occasioned by the injured worker using, for personal reasons, any instrument of added peril such as an automobile, motorcycle, or bicycle, except when the accident was caused by the condition of the road or happening under the control of the employer, or
- the worker is performing an act not incidental to his work or employment obligations.

[10] Of further assistance is Board OPM Document No. 15-03-04 entitled “Employers’ Premises, Parking Lots, Roads, Plazas, Malls, Boundaries”, which provides additional assistance with respect to what constitutes an employer’s premises, and which provides:

Policy

Workers are in the course of employment upon entering the employer's premises at the proper time, using an accepted entrance.

Workers are not in the course of employment when they leave the employer's premises, unless for the purpose of work (see 15-02-02, Accident in the Course of Employment and 15-03-03, On/Off Employers' Premises).

Accidents on employer's premises arise out of employment, unless

- for personal reasons, the worker used an instrument of added peril, for example, an automobile, motorcycle or bicycle. (For exceptions, see parking lots, below.)
- the act causing the injury does not relate to work or employment obligations.

Guidelines

Employer's premises

Definition

The building, plant or location of work, including entrances, exits, stairs, elevators, lobbies, parking lots, passageways and private roads (...)

[11] I also noted Board OPM Document No. 15-03-08, “Personal Activities/Removing Self From Employment”, which states in part that an accident shall be considered to occur in the course of employment when it happens on the employer's premises as defined, unless at the time

of the happening of the accident the worker is performing an act not incidental to the work or employment obligations. Compensation benefits are not payable to a worker who is voluntarily out of the course of the employment.

[12] Of the three factual elements, place, time and activity, Board policy emphasizes and Tribunal case law has established that the activity is the most significant with respect to determining whether an accident occurred in the course of employment. Indeed, so long as a sufficient employment nexus with the activity exists at the time of the accident, the time and place of the activity are of secondary importance in the determination.

[13] For example, I note *Decision No. 443/87*, 1987 CanLII 1628 (ON WSIAT) found that a construction worker who was injured while purchasing a soap dish after his paid work hours was “in the course of his employment”. In that decision the Panel weighed the employment aspects against the personal aspects of the activity and determined that, because the soap dish was purchased for the completion of a bathroom project for the employer, the activity was “essentially an employment-related activity.” It is therefore a primary consideration whether the activity being performed at the time of the accident is incidental to, or has a nexus with, a worker’s employment.

(iii) The Respondent’s Testimony

[14] The Respondent testified that he had been with PS about four weeks and was placed by them at the Applicant’s facilities as a machine operator. He stated that he would perform shift work that could start at 6 am, 2 pm, or 10 pm. The shift on the date of the incident was confirmed as a 2 pm shift. The worker stated that he often took public transit to work, but called a taxi that day. He stated that he arrived at the facility approximately 20 minutes prior to the start of the shift.

[15] In terms of what was expected before each shift, the Respondent stated that he would normally meet a shift supervisor five minutes before his shift. He stated that he was expected by the time of the meeting to have put on clothing and personal protective equipment that included goggles and gloves. On the date of the incident, the worker indicated that he attended the workplace 20 minutes early to prepare for work, and to also sit in the cafeteria and relax before meeting with his supervisor. He confirmed that the five minute meeting with his supervisor would have been included in those 20 minutes.

[16] The worker also confirmed that he was dropped by the taxi in the driveway area of the company and near the corner of the building. He confirmed he took a few steps before slipping and falling to the ground. An aerial photo of the building and parking lot was used by the worker to confirm that he fell in a walkway that was near the employee entrance to the facility.

[17] The worker stated that he reported the incident to his supervisor at BC and continued to work. He stated he could not recall discussing the incident with his employer PS, but was directed to a number of email exchanges on file that showed they were subsequently made aware of the worker’s accident and injuries. It was noted that the worker suffered pain and broken bones in his foot. The worker stated he did not finish his shift and stated he did not file a WSIB claim for the accident.

(iv) Decision

[18] It is important in this case to first address the nature of the employment relationship that the Respondent had with his employment agency (PS), which the parties agreed remained the Respondent's employer at the time of the incident. It was also undisputed that the Respondent was placed and assigned by his employer to work at the Applicant's facility. The case materials also contained the "Temporary Staffing Employment Agreement" between BC and PS that dealt with the temporary placement of workers such as the Respondent and the obligation of PS to show current and valid insurance coverage and a WSIB clearance certificate. This again was not largely in dispute, and I also noted that section 72 of the WSIA states the following:

72. Deemed employer, seconded workers – If an employer temporarily lends or hires out the services of a worker to another employer, the first employer shall be deemed to be the employer of the worker while he or she is working for the other employer.

[19] The fact, however, that the Respondent was a temporary worker and that the Applicant was not his employer does not in my view change the analysis that is required in such cases. I note that the above policy Board OPM Document No. 15-02-02 addresses, as follows, situations where workers do not have a fixed workplace. If a worker is normally expected to work away from a fixed workplace, a personal injury by accident generally will have occurred in the course of employment if it occurred in a place where the worker might reasonably have been expected to be while engaged in work-related activities.

[20] By the very nature of their employment, workers employed by temp agencies would likely rarely attend or ever perform work at the employer's fixed workplace, but would perform work at locations assigned to them by the temp agency. As the policy guides us in such cases, a personal injury by accident generally will have occurred in the course of employment if it occurred in a place where the worker might reasonably have been expected to be while engaged in work-related activities.

[21] The application, therefore, does not turn on whether the Respondent's employer (PS) had care or control over any part of the premises in question, as has been submitted by the Respondent. This was asserted by the Respondent, who cited *Decision No. 2081/16*, 2016 ONWSIAT 2996 which focused on whether an employer had care and control of the premises on which an accident occurred, in that case a parking lot. The Respondent also relied in part on findings in *Decision No. 62/18*, 2018 ONWSIAT 242, which focused on whether a cleaner assigned to work at a client of her employer was in the course of employment when she slipped and fell in the client owned parking lot. It was submitted that the worker's employer did not have any control or responsibility for the client's parking lot, and therefore she was not in the course of employment when the accident occurred. While two reconsideration decisions (*Decisions No. 62/18R*, 2019 ONWSIAT 1115 and *62/18R2*, 2019 ONWSIAT 2285) were issued, the analysis that was argued to apply did not essentially change.

[22] I however do not agree with that analysis. First, accepting such an approach in this case would mean that workers for the temp agency would never be in the course of employment except on the agency's premises, despite that the very nature of their employment is to perform work elsewhere. Second, the analysis ignores the provision from OPM Document No. 15-02-02 which covers situations where a worker is normally expected to perform work away from a fixed workplace. Again, the correct analysis and question in this case is whether the Respondent

would have reasonably been expected to be performing a work-related activity, given the place, time and most importantly the activity being performed.

[23] In terms of the place where the worker was expected to work on January 18, 2018, there are a number of facts that are undisputed. First, the Respondent was assigned to work at the facility in question by his employer. The area surrounding the facility, the parking lot, the walkway, the entrances, and the building itself all form part of what the Applicant and the Respondent described as premises occupied by the Applicant/BC and maintained by CPPM.

[24] The Respondent did not assert, and there was no alternate submission, that the worker slipped and fell in a public location or some other location that was away from the premises under the care and control of the Applicant. As noted above, there was also no dispute as to the Applicant's status as a Schedule 1 employer. It was also evident from the evidence presented, and the testimony of the Respondent, that he arrived in a taxi in front of the employee entrance to the facility. He took a few steps along the walkway leading into the facility, and fell in an area that was maintained by the interested party. The Respondent also referred and I also noted the aerial photograph on file of the facilities in question. It clearly delineated the vehicle entrance to the Applicant's grounds and the location where the taxi stopped in front of what was labelled as the "Employee Entrance". There was also a parking area. All of which could be distinguished from the public roadway and from an adjacent property.

[25] In my view, there is no question that the Respondent arrived at, walked along, and claimed to have slipped and fallen in an area that was part of the Applicant's facilities and grounds. This is clearly a place in which he would have been expected to be in the course of performing his job. It also clearly relates to the nature of the activity being performed at that moment, he was arriving at work. This is clearly an activity that is incidental to the employment function, and perhaps the most important factor. This was also undisputed to the extent that the taxi arrived at the workplace and that the Respondent was there for an afternoon shift beginning at 2 pm.

[26] It was however disputed, along with the timing of the incident in question, as to what the Respondent was doing arriving early for work. The Respondent cited *Decision No. 214/21*, 2021 ONWSIAT 1409 in which a worker arrived 25 minutes early for a shift to have breakfast and smoke a cigarette before her shift. While she was in her employer's parking lot, she was struck by a car. It was determined she was not in the course of employment in that case. A similar finding was reached in *Decision No. 2506/18*, 2018 ONWSIAT 3255 (reconsideration denied in *Decision No. 2506/18R*, 2019 ONWSIAT 954), which was cited as an example of a worker arriving 90 minutes early for a shift, and again being injured in an employer parking lot. Again, it was found the worker had arrived early for a shift and for personal reasons. See also *Decision No. 1380/01*, 2002 ONWSIAT 1871 in which a worker arrived 70 minutes early for social reasons, unrelated to their employment duties.

[27] It was submitted in this case that the worker similarly arrived early for his shift by 20 minutes, and intended at least in part to sit in the cafeteria before his shift, submitted to be a non-work related activity. However, the excerpt cited from the transcript of the discoveries in the action noted that the worker also stated that "...there are little things that I have to get in place before I start working like attend to my PPEs, my clothes, my goggles, sit down and sit in the cafeteria for a while until work started." While a number of tasks were cited, it was argued that the worker did not punch in until 1:42 pm, and that was after being injured. It was also

emphasized that the Respondent was under no obligation to arrive early and noted that he would normally meet about five minutes before the shift. Put succinctly, it was argued that the Respondent was at work early and well before the expected time to prepare for and attend his scheduled shift, and therefore was not performing a work-related activity until just prior to the shift.

[28] In that regard, I would generally agree that, where a worker intentionally arrives early for work, for reasons unrelated to their job, and is not yet performing tasks incidental to their employment, the worker is unlikely to be found to be in the course of employment. That may be true even where they are clearly on the premises of the employer, or in this case, the premises of the client to which they have been assigned to work by their employer. Employers should not, in that regard, be responsible for accidents/injuries that occur outside a worker's course of employment.

[29] However, there are also Tribunal cases that have concluded that time periods longer than 20 minutes before a usual start time were a reasonable period to arrive for work. For example, in *Decision No. 1522/13*, 2013 ONWSIAT 2561, a worker arrived 35 minutes early during which she was injured on a walkway within the parking facility. It was also noted that the worker in that case did not have a fixed arrival time at work, placing emphasis on the place and again the activity factors in analyzing whether the worker was in the course of employment. However, it was found that the arrival time was reasonably incidental to the worker's employment. The Vice-Chair in that case concluded the following:

My review of the testimony provided by Ms. Sarkissian satisfies me that the worker was not planning anything out of the ordinary for March 3, 2008 as far as her arrival at work was concerned. I find that her plan was to park in the parking lot, proceed across the street to the hospital and then pick-up some coffee and/or food on the way to the 5th floor. While it does not seem to be disputed that Ms. Sarkissian would be in the course of her employment had she slipped and fallen at 7:30 a.m., I find no reason to suggest that she should also not be considered in the course of her employment when she fell about 30 minutes earlier. Given the flexibility she had with her starting time, I find that the slip and fall at 6:55 a.m. occurred during a reasonable period before she started work. For this reason, I find that the circumstances also satisfy the "time" requirement of OPM Document No. 15-02-02.

[30] A number of other decisions were also cited by the Applicant as holding that a primary consideration in such cases is whether an activity was reasonably incidental to employment. See for example *Decision No. 1375/20*, 2021 ONWSIAT 270 in which a respondent attended an alternate location without specific instructions, but was found to have remained within the scope of his employment. This was concluded despite that the accident occurred outside of the worker's normal work hours and at a location that was not part of the work premises. The following was determined:

[29] While the Panel acknowledges the Respondent's position, after reviewing the evidence in its entirety, we find that we are led to a different conclusion. Our review of the evidence satisfies us that at the time of his slip and fall accident on December 28, 2012, Mr. Li was in the course of his employment. While the Panel is prepared to accept that the accident occurred outside Mr. Li's normal work hours of 7 a.m. to 7 p.m. and that it occurred at a location that was not part of the premises of S Ltd, we note that OPM Document No. 15-02-02 provides that while the importance to be placed on each of the time, place and activity criteria will vary depending on the circumstances of the case, "in most cases, the decision-maker focuses primarily on the activity of the worker at the time the personal injury by accident occurred to determine

whether it occurred in the course of employment”. Furthermore, as noted by the Panel in *Decision No. 165/96*, one must consider the overall character of the activity being performed at the time of the injury and determine whether it was primarily work-related or primarily personal.

- [31] I also noted for example *Decision No. 736/01*, 2001 ONWSIAT 847, in which a worker went to make a bank deposit for her employer. It was found that the task of making the deposit was not usually part of the worker's duties. That person was away on the day of the accident. The plaintiff accompanied a co-worker. Since the bank was soon going to close, the worker got out of the car and went into the mall with the deposit. The task of making the deposit was not directly assigned to the plaintiff. At most, she was assisting her co-worker. However, the task was clearly to the benefit of her employer. All the plaintiff's activities were reasonably incidental to her employment relationship. There was no evidence of any diversion or personal errand of any kind.
- [32] Considering the guidance from the above noted law and policy, and considering the facts of this case, it is my view that the Respondent was in the course of employment at the time of the claimed slip and fall accident. I found it reasonable for the Respondent to arrive 20 minutes before the start of his shift, allowing 15 minutes in order to prepare to work, including organizing his PPE gear. The last five minutes of that time was also stated to be a meeting with a shift supervisor. I did not view a moment to relax briefly in the cafeteria on the Applicant's premises to have been a significant departure from his employment, nor a personal activity of the nature that would have taken him out of the course of employment.
- [33] Rather, I found the Respondent to have arrived at a reasonable time before his shift, when he fell on the walkway into the facility. This was clearly a work-related activity, and he was not at that location for any other reason but to perform work assigned to him by his employer. The accident also occurred at a location that was in the care and control of the Applicant, a Schedule 1 employer, to which the temp agency assigned him to work on that day. This was the place where his employer and their client expected him to be, at that time, and to perform the activities/work duties assigned to him by his employer.
- [34] In summary, I was persuaded in this case that the Respondent was at a place, at a time, and performing an activity that was incidental to his employment, and according to the expectations and direction of his employer. Put succinctly, he was in a place where the worker might reasonably have been expected to be while engaged in a work-related activity. I therefore conclude that the Respondent was in the course of employment when the claimed accident occurred on January 18, 2018. The Respondent's right to sue across the noted actions is taken away pursuant to sections 28 to 31 of the WSIA.

DISPOSITION

[35] The Application is allowed.

[36] The Respondent's right of action against the Applicant, and the Interested Party to the action, is taken away.

[37] Under section 31(4) of the WSIA the respondent may file a claim with the Board within six months after the date of this decision.

DATED: August 29, 2023

SIGNED: A.G. Baker